

Chandraveer v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 12 December 2023 · 2023:AHC:235387-DB · Writ - C No. 30315 of 2023 · **Writ petition disposed of; petitioner may approach the Section 127 appellate forum within 15 days, the appeal then to be decided within two months without going into limitation**

HEADNOTE

Where the writ petition, an inspection report setting out the videography of an electricity inspection, and the orders disclose disputed questions of fact, the writ court will not try them. The petitioner, if so advised, may approach the appellate forum under Section 127 of the Electricity Act, 2003. If the appeal is filed within 15 days, that forum is to decide it within two months of filing without going into the question of limitation. The writ is disposed of with those observations. The Court had required the electricity department to show how Clause 8.1 of the Electricity Supply Code, 2005 had been followed, and had called for transcripts of the inspection audio and video and for the remedies against a First Information Report lodged against the petitioner. It did not decide Clause 8.1, the inspection, the demand, or the FIR.

FACTUAL SUMMARY

Chandraveer filed Writ-C No. 30315 of 2023 in the Allahabad High Court against the State of U.P. and four others. Pages 46 and 57 of the writ petition recorded that videography had been done and that an audio recording had been made of a conversation between the petitioner and officials of the Electricity Department. A First Information Report had been lodged against him. The department later produced a pen-drive of the video recorded at the inspection.

On 9 October 2023 the Court called for a counter affidavit, for transcripts of the audio and video prepared in the petitioner's presence, and for the remedies he might have taken against the FIR. On 6 December 2023 it directed that the video be shown to him in the presence of the Additional Chief Standing Counsel, that she report on it, and that the department show by a supplementary counter affidavit how Clause 8.1 of the Electricity Supply Code, 2005 had been followed. The writ was disposed of on 12 December 2023.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

disputed facts on an electricity inspection — writ disposed; Section 127 appeal, limitation not examined if filed within 15 days

QUESTION

Where the writ petition, the inspection report of the videography, and the orders raise disputed questions of fact about an electricity inspection, will the writ court decide them, or may the petitioner be left to a Section 127 appeal with a direction that limitation not be examined if the appeal is filed within a short period?

HOLDING

The writ court will not decide those facts. From the writ petition, the inspection report setting out the videography, and the orders, disputed questions of fact were involved. The petitioner, if so advised, may approach the appellate forum under Section 127 of the Electricity Act, 2003. If the appeal is filed within 15 days, the appellate forum is to decide it within two months of filing without going into the question of limitation. The writ petition was disposed of with those observations. ¶ 12.12.2023

QUALIFIER

The invitation to appeal is permissive. The direction not to examine limitation applies only if the appeal is filed within 15 days of 12.12.2023. The Court did not find that a final assessment had been passed, and it did not decide Clause 8.1 of the Electricity Supply Code, 2005.

FLAG Six-page order-sheet of sittings dated 14.9.2023, 9.10.2023, 17.10.2023, 21.11.2023, 6.12.2023 and 12.12.2023. Only the 6.12.2023 order is internally numbered (paras 1-5); para 5 is the direction to show compliance with Clause 8.1. The operative disposal is the unnumbered 12.12.2023 order (Siddhartha Varma and Shekhar B. Saraf, JJ.), which

PRINCIPLE TAGS

disputed-questions-of-fact-not-adjudicable-under-article-226 On 12.12.2023 the Court, after perusing the writ petition, the inspection report of the videography, and the orders, held that disputed questions of fact were involved and declined to try them. ¶ 12.12.2023

alternative-remedy-relegation-section-127 The writ was disposed of by permitting the petitioner, if so advised, to approach the appellate forum under Section 127, without granting or refusing the underlying electricity relief. ¶ 12.12.2023

relegation-to-section-127-appeal-on-merits-limitation-not-examined If the petitioner files the Section 127 appeal within 15 days of 12.12.2023, the appellate forum is to decide it within two months of filing without going into the question of limitation. ¶ 12.12.2023

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 8.1 OF THE ELECTRICITY SUPPLY CODE, 2005 WAS FOLLOWED

On 6.12.2023 the Court directed the electricity department to file a supplementary counter affidavit showing how Clause 8.1 had been followed. The 12.12.2023 disposal does not record or decide that question.

¶ 6.12.2023 para 5; 12.12.2023

NOT DECIDED — MERITS OF THE INSPECTION, THE VIDEOGRAPHY AND AUDIO RECORDING, AND ANY ELECTRICITY DEMAND

Treated as disputed questions of fact and left to a Section 127 appeal, if the petitioner chooses to file one. The orders do not state the amount or the character of the demand. ¶ 9.10.2023; 12.12.2023

NOT DECIDED — REMEDIES AGAINST THE FIRST INFORMATION REPORT LODGED AGAINST THE PETITIONER

On 9.10.2023 the Court asked the department to bring on record the remedies the petitioner might have taken against the FIR. The criminal proceeding was not decided. ¶ 9.10.2023